

Riyasat v. State of U.P.

Allahabad High Court · Division Bench · 29 August 2018 · Writ - C No. 29344 of 2018 · **Writ disposed; petitioner relegated to Clause 6.5.**

HEADNOTE

A writ seeking mandamus to decide a pending representation on electricity-bill correctness was not entertained. Statutory remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005 being available, the Division Bench disposed of the petition with liberty to approach the appropriate authority within one week, to be considered and decided expeditiously in accordance with law.

FACTUAL SUMMARY

Riyasat filed a writ petition in the Allahabad High Court seeking a mandamus directing respondent no. 2 to decide his pending application/representation dated 27 July 2018 within a stipulated period. Counsel for the petitioner and for the Electricity Department were heard. The grievance raised was a dispute about the correctness of an electricity bill. The Court did not examine that bill on the writ side and left the consumer to the statutory billing-objection route.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill correctness — alternate remedy

HOLDING

A writ raising a dispute as to correctness of an electricity bill is not to be entertained where a statutory remedy is available under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The consumer may approach the appropriate authority under that clause; if he does so within one week, the application shall be considered and decided expeditiously in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL ON MERITS

Left to the Clause 6.5 authority. ¶ 1